

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2364

By: Hill

AS INTRODUCED

An Act relating to corrections; amending 57 O.S. 2021, Section 513.3, as amended by Section 1, Chapter 64, O.S.L. 2022 (57 O.S. Supp. 2024, Section 513.3), which relates to the Sarah Stitt Act; modifying responsible agency; requiring inmates be assisted in receiving certain driver license before release; making certain prioritization; requiring certain documentation be gathered; authorizing the certain use of funds; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 57 O.S. 2021, Section 513.3, as amended by Section 1, Chapter 64, O.S.L. 2022 (57 O.S. Supp. 2024, Section 513.3), is amended to read as follows:

Section 513.3. A. When any inmate shall be discharged from an institution of the Department of Corrections and the intended residence designated by the inmate is within this state, the Department of Corrections shall provide the inmate with relevant documentation to assist the inmate in obtaining post-release employment and shall coordinate with ~~the Department of Public Safety~~ Service Oklahoma to provide a REAL ID Noncompliant Driver License or

1 a REAL ID Noncompliant Identification Card if the inmate does not
2 have a current state-issued identification card or driver license.
3 The Department of Corrections shall first assist the inmate in
4 obtaining a REAL ID Noncompliant Driver License. If efforts to
5 assist the inmate in obtaining a REAL ID Noncompliant Driver License
6 fail, the Department of Corrections shall assist the inmate in
7 obtaining a REAL ID Noncompliant Identification Card.

8 B. 1. Within nine (9) months prior to the release of an inmate
9 from custody, the Department of Corrections shall identify whether
10 the inmate has a current form of state identification and begin the
11 process of gathering the documentation required for the issuance of
12 a REAL ID Noncompliant Driver License or, if the inmate is unable to
13 obtain a REAL ID Noncompliant Driver License, a REAL ID Noncompliant
14 Identification Card pursuant to Section 6-105.3 of Title 47 of the
15 Oklahoma Statutes. If an inmate has any valid form of a state-
16 issued identification card or driver license, the inmate may avail
17 himself or herself of the provisions of this section.

18 2. The Department of Corrections may utilize any funds
19 available to cover the costs associated with the implementation and
20 administration of this section and the purchase of REAL ID
21 Noncompliant Driver Licenses or REAL ID Noncompliant Identification
22 Cards, including, but not limited to, inmate trust funds, existing
23 funds of the Department of Corrections and donations.

1 3. The provisions of this section shall apply only to inmates
2 who may receive a state-issued identification card pursuant to
3 Section 1550.42 of Title 21 of the Oklahoma Statutes.

4 C. For purposes of assisting an inmate in obtaining post-
5 release employment, the Department of Corrections shall provide the
6 inmate with the following documentation:

7 1. A copy of the vocational training record of the inmate, if
8 applicable;

9 2. A copy of the work record of the inmate, if applicable;

10 3. A certified copy of the birth certificate of the inmate, if
11 obtainable;

12 4. A Social Security card or a replacement Social Security card
13 of the inmate, if obtainable;

14 5. A resume that includes any trade learned by the inmate and
15 the proficiency at that trade by the inmate; and

16 6. Documentation that the inmate has completed a practice job
17 interview.

18 In addition, the Department shall notify the inmate if he or she
19 is eligible to apply for a license from a state entity charged with
20 oversight of an occupational license or certification.

21 D. The following categories of inmates are not required to
22 complete resumes or practice job interviews prior to their release
23 from incarceration:

24 1. Inmates sixty-five (65) years of age or older;

1 2. Inmates releasing to medical parole or discharging from a
2 prison infirmary setting;

3 3. Inmates releasing from a Department of Corrections Mental
4 Health Unit;

5 4. Inmates releasing to the custody of another jurisdiction on
6 a warrant or detainer;

7 5. Inmates returning to community supervision from an
8 intermediate revocation facility; and

9 6. Inmates that the Department determines would be physically
10 or mentally unable to return to the workforce upon release from
11 incarceration.

12 E. The Department of Corrections is authorized to promulgate
13 rules and procedures to implement the provisions of this section.

14 SECTION 2. This act shall become effective November 1, 2025.

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